

WELLS FARGO BANK, N.A. v VELLIOS

24CF14462

PLAINTIFF'S MOTION TO HAVE MATTERS DEEMED ADMITTED

Plaintiff Wells Fargo Bank, NA ("Plaintiff") sued Defendant Nicholas Vellios ("Defendant") for the collection of a debt and Defendant answered. Now before the Court is Plaintiff's motion to deem admitted the matters contained in Plaintiff's Requests for Admission – Set One ("RFA").

On or about July 12, 2024, Plaintiff served RFA. (Declaration of Angela A. Velen ("Velen Decl.") ¶ 3, Ex. 1.) On or about August 21, 2024, Plaintiff's counsel attempted a meet and confer by sending the letter to Defendant regarding the outstanding discovery and offering additional time to respond. (Velen Decl. ¶ 5, Ex. 2.) Defendant has not responded to the letter, provided any responses to the RFA, or filed any opposition to the motion.

Pursuant to Code Civ. Proc. section 2033.280:

(a) The party to whom the requests for admission are directed waives any objection to the requests, including one based on privilege or on the protection for work product under Chapter 4 (commencing with Section 2018.010). The court, on motion, may relieve that party from this waiver on its determination that both of the following conditions are satisfied:

1) The party has subsequently served a response that is in substantial compliance with Sections 2033.210, 2033.220, and 2033.230.

2) The party's failure to serve a timely response was the result of mistake, inadvertence, or excusable neglect.

Further, the Court shall deem the facts admitted as truth, unless it finds that the party to whom the RFAs were directed, "has served, before the hearing on the

motion, a proposed response to the requests for admission that is in substantial compliance with Section 2033.220.” (Code Civ. Proc. § 2033.280(c).)

Defendant has not served a response and has not provided any evidence to the court that the failure is a result of mistake, inadvertence, or excusable neglect. Accordingly, Plaintiff’s motion is **GRANTED**; all requests are deemed admitted.

The Clerk shall provide notice of the Ruling forthwith. The Court intends to sign the submitted (Proposed) Order

GIANOTTI v KLAUSE, et al.

24CV47238

DEFENDANT’S MOTION TO COMPEL ARBITRATION

Before the Court is a motion to compel arbitration filed by Defendants Downey Management Group, Inc. (“Downey”), Airola Road Vineyards, LLC (“Airola”), George Klaus and Birgit Klaus (collectively “Defendants Klaus”).

Initially, the Court notes defendant’s Notice of Motion fails to include the language mandated by the Court’s Local Rule 3.3.7 concerning the tentative ruling system in place since 1/1/18; lack of the requisite notice language provides a basis for the Court to deny any motion. However, in the interests of justice and judicial economy, the Court waives the shortcoming with regard to the instant motion and provides the following substantive Ruling.

I. Factual and Procedural Background

Plaintiff alleges that Defendants Downey and Airola are joint employers with a unity in interest and ownership with Downey owning Airola. (Complaint ¶ 22.) George Klaus is listed as the agent for both businesses. (*Ibid.*). Defendants own an 88-acre estate that operates as a vineyard and wedding venue. (*Id.* ¶ 23.) Defendants Klaus also own two residential properties on the estate, both of which operate as Airbnb rental properties. (*Ibid.*) Apparently, the entire estate is owned and operated by Defendants Klaus. (*Ibid.*)

On or about December 1, 2022, Defendants hired Plaintiff on a full-time basis as a caretaker at a pay rate of approximately \$800.00 every two weeks, alleged to be significantly below the California minimum wage of \$15.00 per hour. (Complaint ¶ 24.) Plaintiff was required to live in an on-site residential unit as a condition of employment. (*Id.* ¶ 25.) As such, Plaintiff was treated not as a tenant but as a licensee. (*Ibid.*) Plaintiff’s job duties and responsibilities included, but were not limited to, cleaning the rental properties, fountains, and pools, mowing the grass, nurturing plants and flowers, and pruning trees and grapes. (*Id.* ¶ 26.)

Plaintiff alleges a number of wage and hour violations, and also alleges that Defendants Klaus failed to secure the necessary permits to make her living space habitable. (Complaint ¶ 33.) Plaintiff subsequently was allowed to live in one of the Airbnb units, though was not allowed to unpack her belongings and required to accommodate Defendants Klaus’s various guests (*Id.* ¶¶ 34, 35.) Plaintiff also was required to pay rent for the Airbnb unit. (*Id.* ¶ 37.) Allegedly, Defendants Klaus also forced Plaintiff to participate in religious proceedings. (*Id.* ¶¶ 42-46.) After Plaintiff complained about the